

The decisions upon these important Acts, and the General Orders relating to them, will be found separately considered in the Appendix.

53. **Payment to official trustees of charities.**—By 18 & 19 Vict. c. 124, s. 22, any trustee or other person having stock or money in his hands for a *charity* may, by an order of the Board of Charity Commissioners, transfer the stock or pay the money to the *Official trustees* of charitable funds, and such payment or transfer will be an indemnity to the person paying or transferring.

54. **Payment into County Court.**—By 30 & 31 Vict. c. 142, s. 24, trust funds not exceeding 500*l.* in amount or value may, if *money*, be paid into the *Post Office Savings Bank* of any county court town, in the name of the registrar of such Court, or, if *stock or securities*, be transferred into the joint names of the *treasurer and registrar* of such Court.

55. **Protection against creditors, &c.**—Trustees who are also *executors* may be embarrassed as to the distribution of the trust fund, not merely by the difficulty in [*362] *ascertaining who are their *cestuis que trust*, but by reason of the possible existence of paramount claims on the part of creditors or others.

Turner's Act.—To meet this difficulty provision was made by Sir George Turner's Act (*a*) for directing a reference, upon *motion* or *petition* of course, to inquire whether there were any outstanding debts or liabilities affecting the estate of any deceased person, and for enabling the personal representative to distribute the estate subject to the result of the inquiry, without the cost of a *general administration* under the direction of the Court; and by a more recent enactment, the benefit of these provisions might be obtained by summons at chambers (*b*).

56. **Lord St. Leonards' Act.**—By Lord St. Leonards' Act (*c*), even the necessity of an application to the Court under that of Sir George Turner was in most cases rendered unnecessary, it being by Lord St. Leonards' Act in substance enacted that *executors* and *administrators*, after giving such

(*a*) 13 & 14 Vict. c. 35, ss. 19–25.

(*c*) 22 & 23 Vict. c. 35, s. 29.

(*b*) 23 & 24 Vict. c. 38, s. 14.